

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #16	CCRB Case #: 201509470	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/06/2015 12:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/6/2017	Precinct: 105		
Date/Time CV Reported Fri, 11/06/2015 4:03 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/06/2015 4:03 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michael Sogluizzo	3695	937567	QS GANG
2. LT Brian Goss	00000	930252	QS GANG
3. DT3 Rock Pereira	03045	930932	QS GANG
4. Officers			QS GANG
5. An officer			QS GANG

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Daniel Morello	01902	944829	QS GANG
2. DT3 Nicholas Romano	05898	935641	QS GANG
3. DT3 James Conaghan	4097	933704	QS GANG
4. DT3 Jeremy Brandenburg	2321	945523	QS GANG

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Sogluizzo	Abuse: Detective Michael Sogluizzo stopped § 87(2)(b)	A . Substantiated
B . DT3 Rock Pereira	Abuse: Detective Rock Pereira detained § 87(2)(b)	B . Substantiated
C . DT3 Michael Sogluizzo	Abuse: Detective Michael Sogluizzo facilitated the frisk of § 87(2)(b)	C . Substantiated
D . DT3 Rock Pereira	Abuse: Detective Rock Pereira frisked § 87(2)(b)	D . Exonerated
E . LT Brian Goss	Abuse: Lieutenant Brian Goss searched the curtilage of § 87(2)(b) in Queens.	E . Substantiated
F . An officer	Abuse: An officer searched the curtilage of § 87(2)(b) in Queens.	F . Officer(s) Unidentified
G . DT3 Rock Pereira	Abuse: Detective Rock Pereira searched § 87(2)(b)	G . Unsubstantiated
H . DT3 Michael Sogluizzo	Abuse: Detective Michael Sogluizzo searched § 87(2)(b)	H . Unsubstantiated
I . DT3 Rock Pereira	Abuse: Detective Rock Pereira questioned § 87(2)(b)	I . Substantiated
J . DT3 Rock Pereira	Abuse: Detective Rock Pereira searched the curtilage of § 87(2)(b) in Queens.	J . Substantiated

Officer(s)	Allegation	Investigator Recommendation
K . Officers	Abuse: Officers entered and searched § 87(2)(b) in Queens.	K . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 6, 2015, § 87(2)(b) and § 87(2)(b) filed this complaint via telephone with the Civilian Complaint Review Board (CCRB). § 87(2)(b) did not witness the incident.

On November 6, 2015, at approximately 12:30 p.m., § 87(2)(b) encountered officers from Queens Gang outside his and § 87(2)(b)'s residence, located at § 87(2)(b) in Queens. The following was alleged: Det. Michael Sogluizzo stopped § 87(2)(b) (**Allegation A**). Det. Rock Pereira detained § 87(2)(b) (**Allegation B**). Det. Sogluizzo facilitated the frisk of § 87(2)(b) (**Allegation C**) and Det. Pereira frisked § 87(2)(b) (**Allegation D**). Lt. Brian Goss, an unidentified officer and Det. Pereira searched the curtilage of the residence (**Allegations E, F and J**). Det. Sogluizzo and Det. Pereira searched § 87(2)(b) (**Allegations G and H**). Det. Pereira questioned § 87(2)(b). Unidentified officers entered and searched § 87(2)(b)'s and § 87(2)(b)'s residence (**Allegation K**). § 87(2)(g), § 87(4-b) was released without summons or arrest.

There is no available video footage of the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- On November 12, 2015, mediation was presented to § 87(2)(b) during his CCRB interview (Board Review 01) and he opted for an investigation.
- As of January 19, 2016, no notice of claim had been filed in regard to the incident (Board Review 02). This report has been submitted pending the results of an online FOIL request made on March 31, 2016, for any notice of claim filed since January 19, 2016.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) and § 87(2)(b) (Board Reviews 04 and 05).
- Det. Sogluizzo has been a member of service for 11 years and has one CCRB allegation pleaded against him in one other case. This allegation was not substantiated.
- Det. Pereira has been a member of service for 13 years and has six CCRB allegations pleaded against him in four other cases. None of these allegations were substantiated § 87(2)(g)
- Lt. Goss has been a member of service for 13 years and has six CCRB allegations pleaded against him in four other cases. None of these allegations were substantiated § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

- It is undisputed that Det. Sogluizzo and Det. Pereira conducted the stop of § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

• § 87(2)(g)

§ 87(2)(b) described the officer who looked around the yard with Lt. Goss as a white male, 5'4" tall, medium to stocky body build, black hair, in his 40s. § 87(2)(b) could only describe the two officers who allegedly searched his residence as white males. § 87(2)(b)'s statement regarding how many officers were at the scene was corroborated by § 87(2)(b) a neighbor who lives across the street and cornerwise from § 87(2)(b)'s residence. § 87(2)(b) said in her phone statement (Board Review 06) that about eight officers were at the location. From inside her residence, § 87(2)(b) could not see the side door of § 87(2)(b)'s residence through which the officers allegedly entered. § 87(2)(b) was identified via investigation as § 87(2)(b) § 87(2)(b)'s next door neighbor whose residence has windows facing the door through which the officers allegedly entered. § 87(2)(b) stated in a phone conversation with the undersigned investigator that she had no knowledge of the incident (Board Review 09).

§ 87(2)(b) said that all the officers at the scene were white males. From the Queens Gang roll call (Board Review 12), the investigation identified exactly seven white male officers who were on duty at the time of the incident: Det. Sogluizzo, Det. Pereira, Lt. Goss, Sgt. Daniel Morello, Det. Nicholas Romano, Det. James Conaghan and Det. Jeremy Brandenburg. It was established that PO Michael Vila, the eighth white male on the roll call, was not at the incident location because he conducted a warrant search on § 87(2)(b) from the command at Det. Sogluizzo's request. PO Vila's location at the time is supported by his memo book (Board Review 14). The only other officers on duty were Det. Stephen Lalchan, a dark-skinned Asian male, and Det. Amandeep Kaur, an Asian female, whose memo books (Board Review 15; Board Review 16) eliminate these officers as being present.

Det. Sogluizzo (Board Review 8), Det. Pereira (Board Review 10) and Lt. Goss (Board Review 11) acknowledged being at the scene. They were eliminated as subject officers of the entry, as § 87(2)(b) substantively described them and distinguished them from the other officers by the actions they took. Det. Sogluizzo, Det. Pereira and Lt. Goss said that aside from each other, other officers were present, but they could not recall who they were. They denied searching the residence or seeing this occur. Sgt. Morello (Board Review 26), Det. Romano (Board Review 27), Det. Conaghan (Board Review 28) and Det. Brandenburg (Board Review 31) denied being at the location or having knowledge of the incident. The memo books of Sgt. Morello (Board Review 17), Det. Romano (Board Review 18), Det. Conaghan (Board Review 19) and Det. Brandenburg (Board Review 20) have no entries at the time of the incident.

§ 87(2)(g)

On February 5, 2016, a photo array was conducted with § 87(2)(b) and he could not positively any officer. § 87(2)(g)

§ 87(2)(g)

- As discussed above, § 87(2)(b) (Board Review 1) alleged that Lt. Goss and another officer searched the yard of the residence. § 87(2)(b) did not allege this against Det. Pereira, who was distinguishable from the officer with Lt. Goss by the actions attributed to him at the scene. Det. Pereira (Board Review 10), however, acknowledged searching the yard of the residence. § 87(2)(g).

Allegation A – Abuse of Authority: Detective Michael Sogluizzo stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped by two plainclothes officers, identified via investigation as Det. Sogluizzo and Det. Pereira, on the suspicion of being in a possession of a firearm, and that no firearm was found. § 87(2)(b) (Board Review 1) stated that at the time, he wore a black, zip-up hoodie, a black tee shirt and blue jeans, and nothing was creating a large bulge and he had no weapon on his person. At the time of the incident, he was arriving home from buying lottery tickets at a nearby dollar store.

Det. Sogluizzo (Board Review 5) said that he was off duty and driving to work alone when he stopped at a stoplight on Merrick Boulevard at the Belt Parkway. § 87(2)(b) crossed Belt Parkway on foot in front of Det. Sogluizzo's car. As § 87(2)(b) passed, Det. Sogluizzo observed a bulge consistent with the shape of a firearm on the back of § 87(2)(b)'s waistband and underneath his striped, brown and black hoodie. The bulge was six inches long going up the small of § 87(2)(b)'s back and two inches wide, and resembled the handle of a firearm. It looked as if the pistol of the firearm was horizontal to § 87(2)(b)'s waistband. § 87(2)(b) was alone and nothing about his behavior was suspicious. § 87(2)(b) was holding a brown paper bag. Det. Sogluizzo did not speak to § 87(2)(b) at this time. Det. Sogluizzo drove away and lost sight of § 87(2)(b) after about two minutes of observing him. Det. Sogluizzo did not stop § 87(2)(b) because he did not want to stop someone with a firearm by himself. Det. Sogluizzo did not call anyone to the location while keeping sight of § 87(2)(b) because he was so close to the command.

Det. Sogluizzo said that he arrived to the Queens Gang command in about thirty seconds to a minute after seeing § 87(2)(b). Many officers who included Det. Pereira stood in front of the building. Det. Sogluizzo said to Det. Pereira, "There's a guy I just passed at a stoplight and I believe that he's carrying a firearm." Det. Pereira said, "Alright. Let's go." Det. Sogluizzo quickly went inside to sign in and retrieve his vest. Det. Sogluizzo entered a patrol car with Det. Pereira and they began canvassing. The officers coincidentally happened upon § 87(2)(b) about a block away from the command and in front of the incident location. Det. Sogluizzo recognized § 87(2)(b) by his clothing. Det. Sogluizzo notified Det. Pereira, who was driving, that § 87(2)(b) was the individual he saw earlier. At the time, § 87(2)(b) seemed to be exiting the gate of his residence and was reaching behind him to close the gate. As Det. Sogluizzo could not see § 87(2)(b)'s hand behind him, this movement made him suspicious. When Det. Sogluizzo saw § 87(2)(b)'s hand, it held the brown paper bag that Det. Sogluizzo saw § 87(2)(b) with earlier.

Det. Sogluizzo and Det. Pereira simultaneously exited the patrol vehicle. Det. Pereira was closest to § 87(2)(b) so he stopped § 87(2)(b) and handcuffed him. At this time, Det. Sogluizzo had not seen the back of § 87(2)(b) to determine if the bulge was still there and no officer spoke to him before handcuffing him. Det. Sogluizzo stated that he alone made the

decision to stop § 87(2)(b) because of his earlier observations which caused him to suspect that § 87(2)(b) was in possession of a firearm. Nothing else factored into Det. Sogluizzo's decision to stop § 87(2)(b).

Det. Sogluizzo prepared a stop and frisk report for § 87(2)(b) after the incident (Board Review 22). Det. Sogluizzo noted on the report that circumstances that led to the stop were a suspicious bulge (described as "rear bulge on back") and furtive movements. When Det. Sogluizzo was asked to what furtive movements he was referring, he answered that he was referring to when § 87(2)(b) had his hand behind his back as he was closing his gate and holding the paper bag when the officers first pulled up. This made Det. Sogluizzo suspicious until § 87(2)(b) brought his hand forward and Det. Sogluizzo could see that § 87(2)(b) held the brown paper bag from earlier in his hand.

Det. Pereira § 87(2)(g) When the officers encountered § 87(2)(b) he was not acting suspiciously in any way. Det. Pereira did not see § 87(2)(b) make any furtive movements. Det. Pereira approached § 87(2)(b) who already had his hands behind his back, and handcuffed him. No other factor went into Det. Pereira's decision to stop § 87(2)(b) aside from the information Det. Sogluizzo had provided him.

An officer must have reasonable suspicion that criminal activity is afoot to stop an individual, People v. De Bour, 386 N.Y.S.2d 375 (Ct. of Appeals 1976) (Board Review 23).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

Allegation B – Abuse of Authority: Detective Rock Pereira detained § 87(2)(b)

It is undisputed that Det. Pereira (Board Review 10) detained § 87(2)(b) (Board Review 1) by handcuffing him immediately upon approach without asking any questions of § 87(2)(b). Det. Pereira stated that he did this for the officers' safety, given Det. Sogluizzo's earlier observation that § 87(2)(b) had a firearm, which § 87(2)(b) could have thrown. Det. Pereira did not see § 87(2)(b) make any motion to lunge or throw anything. The handcuffs were removed from § 87(2)(b) just before the officers left, after Det. Pereira patted down § 87(2)(b) and established that there was no weapon on his person, and after officers ensured there was no weapon in the yard of the residence.

An officer must have reasonable suspicion that criminal activity is afoot to justify a stop involving the physical seizure of an individual, which is defined as a significant interruption with an individual's liberty of movement, People v. De Bour, 386 N.Y.S.2d 375 (Ct. of Appeals 1976) (Board Review 23).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation C – Abuse of Authority: Detective Michael Sogluizzo facilitated the frisk of

§ 87(2)(b)

Allegation D – Abuse of Authority: Detective Rock Pereira frisked § 87(2)(b)

Det. Pereira (Board Review 10) acknowledged frisking § 87(2)(b) after handcuffing him. § 87(2)(b) (Board Review 1) did not allege this. Det. Pereira said that he observed no bulge or object on § 87(2)(b). Det. Pereira first patted down § 87(2)(b)'s back, where Det. Sogluizzo said that he observed the firearm. Det. Pereira then patted § 87(2)(b) down on his legs, ankles, chest and shoulders to ensure § 87(2)(b) did not have a firearm in these places. Det. Pereira patted down § 87(2)(b) because of the information he received from Det. Sogluizzo that he had observed § 87(2)(b) earlier with a firearm. Nothing else factored into the decision to pat down § 87(2)(b).

An officer may frisk a person for weapons if he has a particularized reasonable suspicion that a suspect is armed and dangerous, People v. Forrest, 77 A.D.3d 511 (App. Div. 1st Dep't 2010) (Board Review 24).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Substantiated** and **Allegation D** be closed as **Exonerated**.

Allegation E – Abuse of Authority: Lieutenant Brian Goss searched the curtilage of § 87(2)(b)
in Queens.

Allegation J – Abuse of Authority: Detective Rock Pereira searched the curtilage of § 87(2)(b)
in Queens.

It is undisputed that Lt. Goss searched the yard surrounding § 87(2)(b)'s and § 87(2)(b)'s residence. § 87(2)(g) As discussed above, § 87(2)(b) did not allege that Det. Pereira searched the yard, but Det. Pereira acknowledged doing this. The yard of

the residence is enclosed by a white, wrought iron fence equipped with a gate providing access to the property.

§ 87(2)(b) (Board Review 1) said that before he was searched (addressed below), Lt. Goss and another unidentified officer walked into the yard and looked through the garbage cans, located at the end of the driveway to the right of the residence, for five to six minutes. The officers went to the backyard of the house and out of view of § 87(2)(b). The officers also looked under the covers of recycling bins next to the garage. § 87(2)(b) alleged that after he was searched, Det. Pereira asked § 87(2)(b) about ten times if officers could search the residence, and each time, § 87(2)(b) was insistent that the officers could not do so. § 87(2)(b) said that he never told the officers that they could search the residence and he never wavered in his answer. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Lt. Goss (Board Review 11) said that he looked for a firearm in the general area where § 87(2)(b) was stopped, including the sidewalk where he stood and in the bushes, which were near the public sidewalk. Lt. Goss did not think he walked into the backyard. Lt. Goss did not look in any closed containers including garbage cans or recycling bins. Lt. Goss said that he looked “around the house,” but clarified that he did not think he walked around the entire residence or into the backyard, but about fifteen feet inside the gate surrounding the house. Lt. Goss did not speak to § 87(2)(b) before walking toward the property. Lt. Goss said that no warrant was required in such a circumstance, as they believed § 87(2)(b) to be in possession of a firearm.

Det. Pereira (Board Review 10) said that when he frisked § 87(2)(b) he voluntarily offered consent for officers to search the residence by saying, “Check wherever you want.” Det. Pereira did not ask for permission to search the house. Det. Pereira entered and searched the yard for any weapon, as he had § 87(2)(b)'s permission, which he interpreted as full consent to search the premises. Furthermore, he had legal basis from the information provided by Det. Sogluizzo that he saw § 87(2)(b) with a gun. Thus, Det. Pereira did not believe that he needed a search warrant. Det. Pereira looked on the right side of the residence leading to the garage. Det. Pereira could not recall if he looked in any enclosed container. Det. Pereira thought he looked in the bushes in front of the house, but could not be certain. Det. Pereira also looked in the backyard.

Officers are required to obtain a warrant before searching the curtilage of a house, as the Fourth Amendment protects the curtilage of a house from unreasonable searches. The curtilage question should be resolved with particular reference to the following: The proximity of the area claimed to be curtilage to the home, whether the area is included within an enclosure surrounding the home, the nature of the uses to which the area is put, and the steps taken by the resident(s) to protect the area from observation by people passing by. United States v. Dunn, 480 U.S. 294 (1987) (Board Review 33).

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E and J** be closed as ***Substantiated***.

Allegation F – An officer searched the curtilage of § 87(2)(b) in Queens.

§ 87(2)(b) (Board Review 1) alleged that another officer searched the yard of the residence with Lt. Goss. § 87(2)(g)

it is recommended that **Allegation F** be closed as ***Officer Unidentified***.

Allegation G – Abuse of Authority: Detective Rock Pereira searched § 87(2)(b)

Allegation H – Abuse of Authority: Detective Michael Sogluizzo searched § 87(2)(b)

§ 87(2)(g) the investigation determined that § 87(2)(b) was searched at least once by either Det. Pereira or Det. Sogluizzo. § 87(2)(g)

§ 87(2)(b) (Board Review 1) alleged that after he was handcuffed and officers entered and began looking around his yard, Det. Pereira and Det. Sogluizzo both reached inside all of the pockets in his hoodie and pants, taking all items out. § 87(2)(b)'s identification was loose and in his front left pants pocket. Det. Sogluizzo looked at the identification, went over the radio and did something with the identification numbers, which took about four minutes. After officers allegedly searched § 87(2)(b)'s residence, Det. Sogluizzo quickly searched § 87(2)(b)'s front right pockets for the second and last time.

Det. Sogluizzo (Board Review 08) denied reaching into any of § 87(2)(b)'s pockets or seeing Det. Pereira do this. Det. Sogluizzo said that he conducted a warrant check on § 87(2)(b) by providing his name and birthdate, which § 87(2)(b) verbally provided, to PO Vila, who Det. Sogluizzo called at the command. Det. Sogluizzo denied collecting § 87(2)(b)'s identification at any time. The stop and frisk report that Det. Sogluizzo prepared for the incident noted that § 87(2)(b) was not searched and that § 87(2)(b)'s name was verbally provided (Board Review 22).

Det. Pereira (Board Review 10) denied reaching into any of § 87(2)(b)'s pockets and could not recall if Det. Sogluizzo did this.

Lt. Goss (Board Review 11) initially said that he did not see Det. Sogluizzo or Det. Pereira reach into any pockets of § 87(2)(b) who was handcuffed. Lt. Goss then clarified that at some point, § 87(2)(b) was asked for his identification, and either Det. Sogluizzo or Det. Pereira reached into one of § 87(2)(b)'s pockets, Lt. Goss could not recall which, and retrieved the identification. Lt. Goss then stated that he could not recall if he saw an officer reach into § 87(2)(b)'s pockets, but he was certain that he saw either Det. Sogluizzo or Det. Pereira with § 87(2)(b)'s identification.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations G and H** be closed as *Unsubstantiated*.

Allegation I – Abuse of Authority: Detective Rock Pereira questioned § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) (Board Review 1) said that after he was searched, Det. Pereira asked § 87(2)(b) about ten times if officers could search the residence, and each time, § 87(2)(b) was insistent that the officers could not do so. § 87(2)(b) said that he never told the officers that they could search the residence and he never wavered in his answer.

Det. Pereira (Board Review 10) said that when he was frisking § 87(2)(b) he asked § 87(2)(b) if he had a gun. § 87(2)(b) answered that he did not, and then stated that he lived at the residence and that the officers could “check wherever [they] want.” Det. Pereira did not ask § 87(2)(b) for permission to search the residence.

Det. Sogluizzo (Board Review 08) said that after § 87(2)(b) was frisked, Det. Pereira asked § 87(2)(b) where in the residence he stayed or slept, and if anyone was home. After § 87(2)(b) answered that he stayed in the attic and that nobody was home, Det. Pereira asked, “Would it be alright if we looked inside?” § 87(2)(b) said, “Yeah, you can. It’s not a problem. I don’t have a problem.”

Lt. Goss (Board Review 11) could not recall Det. Pereira asking § 87(2)(b) if officers could search the residence.

When performing public service functions, officers are generally granted wide latitude to approach and ask information of individuals. An officer’s justification in requesting information while performing law enforcement duties will hinge on the manner and intensity of the interference, the gravity of the crime involved and the circumstances attending the encounter. The encounter should be devoid of harassment and intimidation, and should not subject the individual to a loss of dignity. *People v. De Bour*, 386 N.Y.S.2d 375 (Ct. of Appeals 1976) (Board Review 23).

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as *Substantiated*.

Allegation K: Abuse of Authority: Officers entered and searched § 87(2)(b) **in Queens.**

§ 87(2)(b) (Board Review 1) said that Det. Pereira repeatedly asked him if the officers could search the house. § 87(2)(b) said each time that the officers could not search the house.

After the eighth or ninth time Det. Pereira asked to search the house, he seemed to get fed up and said, “Oh, thanks for your cooperation. We’re going to take a look.” Two of the additional officers to arrive at the location entered the house via the side door, which § 87(2)(b) and his family always leave open because it is a good neighborhood. No officer gave directions to these officers before they entered. § 87(2)(b) could not see what the officers did inside the house. After about five minutes, the officers exited the residence. One of the officers said, “Oh, it’s a 9-1,” determined via investigation to be the radio code for “non-crime corrected.”

Det. Pereira (Board Review 10) denied asking § 87(2)(b) if he could search the residence, but said that § 87(2)(b) without prompting said, “You guys can check wherever you want.” Det. Pereira entered and searched the yard for a weapon, as he had consent from § 87(2)(b) to do so. Det. Pereira did not find anything. Det. Pereira could not recall if any other officer searched the yard. Det. Pereira could not recall seeing any officer enter the residence, and he did not do this.

Det. Sogluizzo (Board Review 08) said that Det. Pereira asked § 87(2)(b) for permission for officers to enter and search the residence. § 87(2)(b) said, “Yeah, you can. It’s no problem. I don’t have a problem.” While Det. Sogluizzo called the command to conduct a warrant search on § 87(2)(b) officers (Det. Sogluizzo could not recall who) looked around the yard for about three minutes, to ensure that § 87(2)(b) did not stash a firearm anywhere. The officers looked in bushes and other places out of Det. Sogluizzo’s sight. Although the officers had verbal permission from § 87(2)(b) to enter the residence, Det. Sogluizzo did not see any officer do this. After the yard was searched and the warrant check for § 87(2)(b) yielded negative results, Det. Sogluizzo put an end to the incident. Nothing specifically occurred that caused Det. Sogluizzo to believe there was no firearm in the residence, but he felt that § 87(2)(b) was being truthful.

Lt. Goss (Board Review 11) said that he looked in the general area where § 87(2)(b) was stopped including the sidewalk and nearby bushes. Lt. Goss found no weapon. Lt. Goss denied entering the residence or seeing any officer do this.

Sgt. Morello (Board Review 26), Det. Romano (Board Review 27), Det. Conaghan (Board Review 28) and Det. Brandenburg (Board Review 31) denied being present at the incident location.

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as *Officers Unidentified*.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 16

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date